

# **Abated Filing — Envelope No. 115456885 / Case No. 26-0537 — LAJ Impossibility — Request for Judicial Review Before Dismissal**

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From Katie Copeland <katie@katiecopeland.com>

To blake.hawthorne@txcourts.gov

Date Thursday, May 28th, 2026 at 5:07 PM

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Dear Mr. Hawthorne,

I am writing at the direction of Deputy Clerk Kathy, who advised me this afternoon that email is the appropriate contact method for this matter.

Envelope No. 115456885 (filed May 28, 2026) was abated today under § 11.1035 with a ten-day deadline. The abatement notice directs me to obtain an order from the "appropriate local administrative judge" described by § 11.102(a). I am unable to comply with that condition because no such judge exists for the Supreme Court of Texas.

Section 11.102(a) defines the appropriate LAJ as "the local administrative judge of the type of court in which the vexatious litigant intends to file." The Supreme Court of Texas has no local administrative judge. When I raised this with Deputy Clerk Kathy today, she was unable to identify who the appropriate LAJ would be — because the official the statute requires does not exist for this Court. A ten-day condition that is structurally impossible to satisfy is not a condition; it is a dismissal mechanism with extra steps.

The Motion to Confirm Filing and Vacate Erroneous Post-Docketing Rejection, included in Envelope No. 115456885, presents three independent legal grounds why Chapter 11's prefiling restriction does not apply to this proceeding at all — grounds that can only be resolved by the Court, not administratively. I am attaching it here for your direct review.

I recognize you have made an initial determination on this. I am respectfully asking you to reconsider in light of the full motion, which may not have been available when that determination was made. If the Court cannot accept this filing and the matter is dismissed, my only remaining avenue is an application to a United States Supreme Court Justice under 28 U.S.C. § 1651 — a step I would strongly prefer to avoid if there is a lawful path forward here.

This case involves an ongoing medical emergency affecting my fourteen-year-old daughter, whose physician-confirmed condition is deteriorating while enforcement of federal disability benefits is withheld. I do not raise this for sympathy but so the urgency of a ruling before the ten-day period expires is clear.

Respectfully submitted,

Kathryn Copeland

Texas Bar No. 24086056

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*Attachments:*

Motion to Confirm Filing and Vacate Erroneous Post-Docketing Rejection and Supporting Brief

Letter to Clerk

Emergency Petition for Writ of Prohibition

Notice of Presumed Indigence

Rejected filing email



KATHRYN "KATIE" COPELAND

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FEATURED PUBLICATION

[Access Is Not Advantage: Structural Integrity and Disability Accommodation in State Courts](#)

American Bar Association · 2026

9.44 MB 5 files attached

Filing Returned for Envelope Number: 115456885 in Case: 115456885, for filing Petition.pdf 66.41 KB

2026.05.28 Letter to Clerk.pdf 55.34 KB

2026.05.28 Relator's Motion to Confirm Filing.pdf 269.88 KB

2026.05.27 Notice\_Presumed\_Indigence\_SCOTX.pdf 680.03 KB

2026.05.27 Petition for Writ of Prohibition.pdf 8.39 MB